

so desire and in the event same is done by a formal legal instrument recorded in the courthouse, then said road easement may be used by the parties owning the land to the west, their successors, grantees, invitees and guests.

Together with a private easement for ingress and egress to and from the above tract of land to the south line of Dona Ana County Road C-041, all as more specifically described in a right of way easement from Martin, Martin & Lutz, P.A. to the grantor herein dated December 19, 1977.

SUBJECT to the reservations contained in the patent, easements and restrictive covenants of record.

WITNESS its hand and seal this 19th day of December, 1977.

IMA, INC.

ATTEST:

By Tom Q. Capron, Sec.

By Edgar Lopez, President

STATE OF NEW MEXICO)

SS.

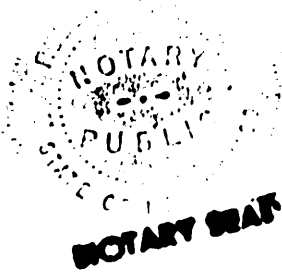
COUNTY OF DONA ANA)

The foregoing instrument was acknowledged before me this 30 day of December, 1977, by Edgar Lopez, President of IMA, Inc., a New Mexico corporation, on behalf of said corporation.

Robert L. Brown
Notary Public

My commission expires:

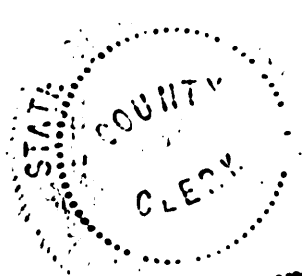
8-27-80



State of N. Mex., Co. of Dona Ana; ss
RECEPTION NO. 10835 Hereby
certify that this instrument was filed
for record and duly recorded on:

JAN 5 1978

at 12:32 clock P.M. in Don
Book 246 Page 502-503 of the
records of said county County
DELIA GARCIA BARNCASTLE Clerk
BY: Marta Flores Deputy



COUNTY CLERK SEAL

503

78 JAN 5 PM 12 32
DONA ANA COUNTY CLERK

S. Webb

WARRANTY DEED

IMA, INC., a New Mexico corporation, for consideration paid, grants to ALFRED E. WINBLAD and GLADYS R. WINBLAD, his wife, as joint tenants with full rights of survivorship, 6000 Buena Vista, NW., Albuquerque, New Mexico 87114, the following described real estate in Dona Ana County, New Mexico:

A tract of land situate southwest of Las Cruces, Dona Ana County, New Mexico in Section 3, Township 24 South, Range 1 East, N.M.P.M. of the USGLO Surveys and being more particularly described as follows, to-wit: Beginning at an iron rod found for the northwest corner of the tract herein described, whence a brass cap found for the northwest corner of Section 3, Township 24 South, Range 1 East, N.M.P.M. of the USGLO Surveys bears N. 43 deg. 17' 10" W. 711.71 feet; thence from the place of beginning N. 79 deg. 56' E. 204.57 feet to an iron rod set for the northeast corner of the tract herein described; thence partially along the west line of a 100 foot wide road S. 36 deg. 55' 50" E. 478.64 feet to an iron rod set for the southeast corner of the tract herein described; thence leaving the road S. 76 deg. 52' 38" W. 430.23 feet to a concrete monument set for the southwest corner of the tract herein described; thence N. 8 deg. 57' W. 450.00 feet to the place of beginning, containing 3.219 acres of land more or less, subject to the following described road easement:

A strip of land located within the above described 3.219 acre tract being 15 feet to either side of the following described centerline: Beginning at a point on the east line of the above described 3.2190 acre tract and the west line of a 100 foot wide road, whence an iron rod set at the northeast corner of the before mentioned 3.2190 acre tract bears N. 36 deg. 55' 50" W. a distance of 200.00 feet; thence from the point of beginning S. 71 deg. 05' 40" W. 302.93 feet to the end of the easement herein described, whence an iron rod found for the northwest corner of the before mentioned 3.219 acre tract bears N. 8 deg. 57' W. 225.00 feet.

The above road easement at the present time terminates on the west side of the above described tract of land and the owners of the land or their successors, assigns and grantees lying west of the above described tract of land may at their option extend said road from the west side of said tract of land should they